

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUWE044716: KAMRAN RAHIMOV vs TEACHERS INSURANCE AND
ANNUITY ASSOCIATION OF AMERICA
08/14/2026 in Department 42
Motion for Judgment on the Pleadings**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

In pro per Plaintiff Kamran Rahimov ("Plaintiff") filed a complaint on May 29, 2025 regarding Defendant Teachers Insurance and Annuity Association of America's ("Defendant") attempt to evict him from Westcreek Apartments in Westlake Village. In response to a demurrer, Plaintiff filed a First Amended Complaint ("FAC") on July 21, 2025, alleging (1) Constructive Eviction, (2) Breach of Covenant of Quiet Enjoyment, (3) Harassment, (4) Retaliation, (5) Defamation, (6) Intentional Infliction of Emotional Distress, (7) Negligence, and (8) Disability Discrimination.

Defendant filed the instant Motion for Judgment on the Pleadings with respect to every cause of action in the FAC. Plaintiff opposes.

I. Discussion

A. Legal Standard

A defendant may move for judgment on the pleadings on the grounds that the court has no subject matter jurisdiction of the cause of action alleged in the complaint, or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B).) "The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (*Ibid.*, subd. (d).) "An MJOP is equivalent to a demurrer and is governed by the same standard of review. All material facts that were properly pleaded are deemed true, but not contentions, deductions, or conclusions of fact or law." (*Pang v. Beverly Hosp., Inc.* (2000) 79 Cal.App.4th 986, 989.)

B. Analysis Applicable to FAC as a Whole

Two matters affect the entire FAC: the September 3, 2024 Minute Order and the litigation privilege. These two threshold matters are examined below.

1. Request for Judicial Notice

In connection with this motion, Defendant requests judicial notice of this case file, including the Complaint and the FAC; the September 3, 2024 Minute Order in case 2023CUUD015584 (the

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unlawful detainer action between the parties) (the “UD Action”); and the underlying written lease (under the incorporation by reference doctrine because it is specifically referenced but not attached to the FAC, see ¶¶2, 13, 27, 46, 52, 58. Plaintiff does not oppose Defendant’s request for judicial notice.

The court may take judicial notice of any record of any court in the United States. (Evid. Code § 452, subdiv. (d).) Therefore, the Court grants the request for judicial notice of the records filed in this case and the September 3, 2024 Minute Order in the UD Action.

The impact and import of the September 3, 2024 Minute Order is the subject of much dispute between the parties. The FAC alleges “[a]t no point was the Plaintiff in default as was further confirmed by the Court ruling on September 3, 2024.” (FAC, ¶¶ 68, 72.) Defendant asks the Court to find this allegation incorrect. (Memo. 2:21-27.)

Under Evidence Code section 452 subdivision (d), the court may take judicial notice of the existence of each document in a court file in another proceeding, but not of the truth of the matters asserted in those documents, including the factual findings of the judge who was sitting as the trier of fact. (*Barri v. Workers’ Comp. Appeals Bd.* (2018) 28 Cal.App.5th 428, 437-438.)

Regardless, clarification is appropriate. Paragraph 7 of the September 3, 2024 Minute Order finds that the proper cure amount for the 3-Day Notice was \$5,384 (the amount that Defendant claimed past due under the subject lease) as opposed to \$17,535 (the amount that Defendant claimed past due under the subject lease and prior leases). The Court did not, however, resolve the factual question of whether Plaintiff actually owed the \$5,384 due under the subject lease. Instead, Paragraph 9 states that the 3-Day Notice was void because the cure sum exceeded the claimed default under the subject lease and Paragraph 10 finds that the UD action is therefore void. In other words, the September 3, 2024 does not make a finding as to whether Plaintiff was or was not in default; this issue was never adjudicated. Accordingly, to the extent that the FAC alleges that the Court in the UD Action found that Plaintiff was not in default, the allegation is not correct as a matter of law.

2. Litigation Privilege

Defendant asserts that “[l]arge portions of the FAC are . . . predicated on prelitigation and litigation communications, including the three-day notice, counsel’s August 17, 2023 letter, and the filing and prosecution of the unlawful detainer action. These allegations are barred by the litigation privilege.” (Memo., 2:28-3:3.) In his Opposition, Plaintiff states “Plaintiff does not dispute that the 3-Day Notice, counsel’s August 17, 2023 letter, and the filing and prosecution of the unlawful detainer action are communications within Civil Code section 47(b). (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241; *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Those communications are not the basis of liability.” (Opp., 5:22-25.) The Court agrees that the 3-Day Notice, August 17, 2023 letter, and prosecution of the UD Action are protected by the litigation privilege. Accordingly, Plaintiff’s causes of actions cannot be based upon communications subject to the litigation privilege.

C. Analysis of Each Cause of Action

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In light of the above conclusions affecting the FAC as a whole, the Court will examine each cause of action.

1. First Cause of Action – Constructive Eviction

The first cause of action for constructive eviction is based primarily on the following allegations: issuance of a knowingly false and defective 3-Day Notice to Pay or Quit; repeated rejection of timely rent payments for multiple months without justification; refusal to engage in the interactive process following Plaintiff's request for reasonable accommodation due to a documented disability;¹ denial of access to on-site amenities essential to Plaintiff's physical health and medical condition (including the gym and business center) between August 18 and October 17, 2023; locking Plaintiff out of the leasing office and mail facilities; and issuance of a threatening legal letter by defense counsel falsely accusing Plaintiff of harassment, banning communication, and returning rent payments with the stated intent to "return [them] over and over again." (FAC 53)

As stated above, the Court grants the motion as to the allegations regarding communications subject to the litigation privilege only (i.e., the 3-Day Notice and the August 17, 2023 letter). The Court finds the remaining allegations are sufficient to state a cause of action.

2. Second Cause of Action – Breach of Covenant of Quiet Enjoyment

The second cause of action for breach of covenant of quiet enjoyment is based primarily on the following allegation: "Defendants' conduct — including barring access to the gym, rejecting rent, and restricting access to management — substantially interfered with Plaintiff's use and enjoyment of the premises. Defendants knew of Plaintiff's medical condition and need for accommodation, yet knowingly worsened conditions to compel departure. (FAC, ¶¶ 59-60.)

Defendant argues that the FAC does not allege facts showing that Defendant substantially interfered with Plaintiff's possession or beneficial use of the dwelling, citing to ¶32(f) of the Lease, and asserting that Plaintiff does not allege that he vacated because of the interference. Therefore, Defendant argues that this cause of action fails. Defendant's citation to ¶32(f) is not persuasive. Paragraph 32(f) of the Lease does not constitute a waiver of right to bring this action or show that Plaintiff cannot establish a substantial interference. Defendants' argument asks the Court to do too much, to decide the truth of the allegations, e.g., that certain amenities are "non-integral." The Court cannot make that determination at this stage, on a pleading challenge.

Consequently, the Court finds that this cause of action is sufficient as pleaded.

3. Third Cause of Action – Harassment

Civil Code section 1940.2, states:

¹ Plaintiff cited the incorrect law for the interactive process for housing accommodation requests. Plaintiff is correct, however, that this error is not dispositive.

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(a) It is unlawful for a landlord to do any of the following for the purpose of influencing a tenant to vacate a dwelling: ...

(3) Use, or threaten to use, force, willful threats, or menacing conduct constituting a course of conduct that interferes with the tenant's quiet enjoyment of the premises in violation of Section 1927 that would create an apprehension of harm in a reasonable person. Nothing in this paragraph requires a tenant to be actually or constructively evicted in order to obtain relief.

“The purpose of Civil Code section 1940.2 is to prohibit a landlord's use of constructive self-help eviction techniques [citation], such as theft, extortion, interference with a tenant's quiet enjoyment, or trespass ‘for the purpose of influencing a tenant to vacate a dwelling.’ (Civ. Code, § 1940.2, subd. (a).)” (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th at pp. 1300–1301 and fn. 10.)

Here, the FAC, even liberally construed, fails to alleges sufficient facts that could be seen as establishing “willful threats” or “menacing conduct” interfering with Plaintiff's right to quiet enjoyment. The allegations outside of those contained in the August 17, 2023 letter (which are privileged communications) merely assert that Plaintiff was excluded from certain facilities essential to him, including the mailbox, and his tender of rents was denied. As Plaintiff concedes, the mailbox allegations are post-departure allegations. Rejecting rent is not a “willful threat” or “menacing conduct.” Further, as Defendant emphasizes, Plaintiff has not alleged any reasonable “apprehension of harm” from those actions.

Therefore, the Court grants the motion as to this cause of action with leave to amend.

4. Fourth Cause of Action – Retaliation

Civil Code section 1942.5 prohibits retaliation against a tenant for asserting their legal rights. According to the FAC, “Plaintiff's protected conduct included: Requesting a disability accommodation[;] Objecting to the false 3-Day Notice[;] Declaring his intent to defend his legal rights[;] At no point was the Plaintiff in default as was further confirmed by the Court ruling on September 3, 2024. In response, Defendants: Rejected rent[;] Sent harassing letters[;] Barred Plaintiff from management office[;] Initiated unlawful detainer litigation[.]” (FAC, ¶¶ 68-69.)

As explained above, the 3-Day Notice, August 17, 2023 letter, and prosecution of the UD Action are protected by the litigation privilege. As further explained above, the September 3, 2024 Minute Order did not adjudicate Plaintiff's default. Plaintiff's cause of action cannot, therefore, be based upon these allegations.

With these allegations removed, the retaliation claim would be as follows: Plaintiff requested a disability accommodation and asserted his intent to defend his legal rights, and in response Defendants rejected rent and barred Plaintiff from the management office. These allegations are insufficient under Civil Code section 1942.5. For example, Plaintiff must separately allege that he was not in default as to the payment of rent without reliance upon the September 3, 2024 Minute Order. Furthermore, Plaintiff must sufficiently allege one of the conditions set forth in Civil Code section 1942.5(a)(1-5).

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For the foregoing reasons, the Court grants the motion as to this cause of action with leave to amend.

5. Fifth Cause of Action - Defamation

Defendant argues that Plaintiff's defamation claim is barred by the applicable one-year statute of limitations (CCP §340 (c)), and the claim does not allege publication of a defamatory statement.

Both grounds have merit. "The defense of statute of limitations may be asserted by general demurrer if the complaint shows on its face that the statute bars the action." (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315.) However, in order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred." (*McMahon v. Republic Van & Storage Co., Inc.* (1963) 59 Cal.2d 871, 874. The statute of limitations period starts when the party with the claim can commence the action, which occurs when the last "essential element" of the cause of action occurs. (*Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.)

Here, the FAC alleges that on October 17, 2023, Defendant caused the tenant survey to identify Plaintiff as Kamran "EVICTION" Rahimov. (FAC, ¶ 75.) Plaintiff cannot dispute that the action was not filed until May 29, 2025, more than seven months too late. The FAC does not contain allegations supporting tolling, and equitable tolling does not apply under the facts alleged. Plaintiff's prosecution of the UD Action was not aimed at obtaining a remedy on a libel claim. There was no bar to defending the UD action and alleging this defamation claim in a timely manner. Consequently, the claim is clearly and facially barred by the statute of limitations period.

Moreover, the FAC alleges that GraceHill published the statement Kamran "EVICTION" Rahimov. (FAC, ¶¶ 75, 77.) While Plaintiff alleges that Defendant "caused" the tenant survey email to identify Plaintiff in that manner, the relationship between TIAA and GraceHill is not explained. For example, there are no claims of agency. There is no allegation that Defendant published anything at all. Also, the assertion that adding "eviction" to a name is defamatory per se is not convincing. (See FAC ¶ 78; Opp. 9:6-11.)

Accordingly, the Court grants the motion with respect to this cause of action, without leave to amend.

6. Sixth Cause of Action - IIED

To protect courts from being flooded with suits claiming distress from every kind of indignity or abuse, no matter how trivial, California law imposes strict standards for pleading a cause of action for intentional infliction of emotional distress ("IIED"). Whether the conduct alleged rises to the level of "extreme and outrageous" under California law is a question of law for the court, and courts routinely dispose of improper intentional infliction of emotional distress claims at the pleading stage. (*Fowler v. Varian Assoc., Inc.* (1987) 196 Cal.App.3d 34 ("It is for the court to

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determine, in the first instance, whether the defendant's conduct may reasonably be regarded as so extreme and outrageous as to permit recovery”).)

A plaintiff does not properly state a claim for IIED by merely alleging the legal conclusion that the defendant's conduct was “outrageous,” or that he suffered “severe” emotional distress. Rather, the elements of a *prima facie* case for IIED are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's alleged outrageous conduct. (*Cervantez v. J. C. Penney Co.* (1979) 24 Cal.3d 579, 593; *Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903).

In describing the degree of conduct actionable under a cause of action for intentional infliction of emotional distress, the court in *Cochran v. Cochran* explained, “Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.” (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496.) A high bar has been set for the requirement of pleading the element of severe emotional distress. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051). Severe emotional distress is “emotional distress of such substantial quality or enduring quality that no reasonable [person] in a civilized society should be expected to endure it.” (*Ibid*). It is not sufficient for a plaintiff to simply state in conclusory terms that he or she has suffered severe emotional distress. In *Bogard v. Employers Casualty Co.*, (1985) 164 Cal.App.3d 602, the court found that the mere allegation that the plaintiffs suffered severe emotional distress, without facts indicating the nature or extent of any mental suffering incurred as a result of the defendant's alleged outrageous conduct, failed to state a cause of action for emotional distress. (*Ibid*. at p. 617; *Pitman v. City of Oakland* (1988) 197 Cal.App.3d 1037, 1047 (demurrer sustained because plaintiff's dismissal from job did not allege the level of distress necessary to support a claim of IIED).)

Based on the above, Plaintiff must plead specific facts showing that Defendant's conduct was “extreme” and “outrageous.” Here, however, Plaintiff has simply stated in conclusory fashion behavior that shows indignities, petty oppressions, and other trivialities that are not actionable. (See, e.g., FAC ¶¶ 83-86.) Even if the allegations are true, they do not rise to the level of “extreme and outrageous” conduct necessary to support an IIED claim.

Accordingly, the motion is granted as to this cause of action, with leave to amend.

7. Seventh Cause of Action - Negligence

“To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries.” (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 62.) “It is established that a cause of action may be stated in which negligence is alleged in general terms, without detailing the specific manner in which the injury occurred.” (*Guilliams v. Hollywood Hospital* (1941) 18 Cal.2d 97, 101.) “There are, of course, limits to the generality with which a plaintiff is permitted to state his cause of action, and it is

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ordinarily said that while negligence may be pleaded in general terms, the plaintiff must indicate the acts or omissions which are said to have been negligently performed. He may not recover upon the bare statement that the defendant's negligence has caused him injury.” (*Ibid.*) “It should be recognized, however, that the particularity with which a plaintiff must state his cause of action depends to some extent upon the circumstances and the situation, of the parties.” (*Ibid.*)

Here, Plaintiff failed to allege a duty that Defendant owed to Plaintiff. This case is not a habitability-based negligence claim or a premises liability action. (See Civ. Code §§ 1714, 1941.1 and 1941.3.) In other words, none of the statutes are applicable to the allegations in the FAC. The basis for the claimed duty of a landlord to properly handle rent, legal notices and data is unclear.

Therefore, the motion is granted with respect to this cause of action, with leave to amend.

8. Eighth Cause of action - Disability Discrimination

Plaintiff alleges disability discrimination under several statutes. The allegations supporting this cause of action, however, are entirely unclear. As a preliminary matter, the physical disability is never identified. Moreover, Plaintiff does not articulate the reasonable accommodation he requested. There is nothing, therefore, to connect the unidentified disability to the accommodation or to show how the alleged denial or failure impacted him. Plaintiff must allege facts with more specificity in order to state a claim; indeed, Plaintiff will need to plead adequate ultimate facts for all elements of this cause of action.

Accordingly, the motion is granted with respect to this cause of action, with leave to amend.

II. Conclusion

The Court GRANTS judicial notice as requested by moving-party Defendant Teachers Insurance and Annuity Association of America’s (“Defendant”).

The Court GRANTS the Motion for Judgment on the Pleadings in part and DENY in part.

- The Motion is granted, without leave to amend, as to the fifth cause of action (defamation);
- The Motion is granted, without leave to amend, as to allegations regarding communications subject to the litigation privilege and as to allegations regarding the meaning of the Court’s September 3, 2024 Minute Order;
- The Motion is granted, with leave to amend, as to the first (constructive eviction), third (harassment), fourth (retaliation), sixth (IIED), seventh (negligence) and eighth causes of action (disability discrimination).
- The Motion is denied as to the second cause of action (breach of covenant of quiet enjoyment).

Plaintiff has 30 days to amend. (CCP section 438(h)(2).)